

Using the High-Performing States Model to facilitate Employment First in Florida

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Abstract.

BACKGROUND: Nearly every state has adopted Employment First as a set of guiding principles and practices that target employment in typical work settings as the priority for state-funded services and supports for individuals with disabilities. However, naming employment as the state's first priority is only one step to ensuring that every individual who wants a job has a job.

OBJECTIVE: Stakeholders in Florida have worked towards improving employment opportunities for all Floridians with disabilities. Using the High-Performing States Model to structure systems change actions, state agencies and organizations developed and implemented a state-level interagency coalition, interagency cooperative agreement, and interagency plan to ensure the long-term commitment to employment across key state agencies.

CONCLUSION: Working together to identify challenges and gaps in both disability employment services and between available workers and labor market needs, Florida built upon its existing disability and employment infrastructure to develop joint plans of action that address both inter- and intra-agency goals to ensure that any Floridian with a disability who wants a job is able to become economically self-sufficient.

Keywords: Employment First, interagency, integrated employment

1. Introduction

Nearly every state has adopted Employment First as a set of guiding principles and practices that target employment in typical work settings as the priority for state-funded services and supports for individuals with disabilities. However, naming employment as the state's first priority is only one step to ensuring that every individual who wants a job has a job. Working together to identify challenges and gaps in both disability employment services and between available workers and labor market needs, Florida built

upon its existing disability and employment infrastructure to develop joint plans of action that address both inter- and intra-agency goals to ensure that any Floridian with a disability who wants a job is able to become economically self-sufficient.

Federal and state policy has paved the way to support opportunities for people with disabilities to have meaningful jobs in their communities (Kiernan, Hoff, Freeze, & Mank, 2011), yet there remains a significant gap in employment rates between people with and without disabilities. The 2016 American Community Survey estimates that 35.4% of working-age adults with disabilities are employed, compared with 74.3% of people without disabilities (Winsor et al., 2018).

For people with intellectual and developmental disabilities (IDD), the disparity in employment

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participation widens further. In FY 2016, only an estimated 18.8% of individuals who receive employment or day services from state IDD agencies received integrated employment services based on state responses to ICI's National Survey of State Intellectual and Developmental Disabilities Agencies' Employment and Day Services (Winsor et al., 2018). Data from the National Core Indicators (NCI) Project suggest that in 2015–2016 only 19% of working age adults supported by state IDD agencies worked for pay in integrated employment (National Core Indicators, 2017). Community rehabilitation providers (CRPs) reported in 2014–2015 that only 17.5% of individuals with IDD supported by their organization worked in individual integrated jobs (Domin & Butterworth, 2016).

Nearly every state has some form of Employment First initiative, with 35 having a formal policy (Hoff, 2017). Employment First is nationally recognized as a policy path towards greater community employment. Employment First represents a commitment by states, and state IDD agencies, to the propositions that all individuals with IDD (a) are capable of performing meaningful work in typical integrated employment settings, (b) should receive as a matter of state policy employment-related services and supports as a priority over other facility-based and non-work day services, and (c) should be paid at minimum or prevailing wage rates.

The actualization of Employment First requires that significant changes be made in the design and operation of states' developmental disabilities service delivery systems. Research suggests that while the existence of a policy is important to provide a vision for practice and expectations, the existence of the policy by itself does not guarantee that

more people with disabilities will become employed. Researchers from the ICI examined 13 state IDD agencies that in 1999 reported more than 30% of individuals in integrated employment and then conducted in-depth case study research in three states (CO, NH, and WA). This led to the development of a theoretical model that identified how contextual factors, system-level strategies, and system goals support integrated employment outcomes (Hall, Butterworth, Winsor, Gilmore, & Metzel, 2007). Taken in its entirety, the High-Performing States Model suggests that each element contributes to systems change: leadership and values, strategic goals and operating policy, training and technical assistance, interagency collaboration and partnership, services and service innovation, and performance management and data management (Fig. 1).

2. Content

2.1. Building momentum for Employment First Florida

Recognizing that Florida's employment outcomes for individuals with disabilities, including those with IDD, were below the national average (Winsor et al., 2018), stakeholders in Florida have worked towards improving employment opportunities for all Floridians with disabilities. In 2011, the Florida Developmental Disabilities Council, Inc. (FDDC) entered into a partnership with the Institute for Community Inclusion (ICI) and the National Association of State Directors of Developmental Disability Services to develop an Employment First initiative in Florida. The overarching goal was to ensure broad



Fig. 1. High-Performing States Framework.

participation from Florida stakeholders to develop and support a framework that would contribute to greater employment opportunities for Floridians with disabilities. During the first two years of the project, ICI focused on state comparisons, conducting in-depth research on nine states similar to Florida. ICI developed a Cross-State Summary Report and collected data in Florida through various methods, including town-hall forums, focus groups with self-advocates, discussions with key stakeholders, a web-based forum, and an online survey. The research resulted in a Florida Findings Report, a draft Implementation Plan, and a Marketing Framework.

Simultaneously, Florida Governor Rick Scott issued Executive Order 11-161, creating the Governor's Commission on Jobs for Floridians with Disabilities, to identify and propose public policy solutions that would address the barriers confronting persons with disabilities in the workforce, with the goal of helping them achieve greater independence. The Commission took a macroeconomic approach to developing strategies that would help the state promote "win-win" outcomes in employment, where individuals with disabilities could better compete and succeed in the labor market and employers could have the tools to hire and retain qualified candidates with disabilities as part of their workforce. The Commission conducted its work between 2012 and 2014, during which time it presented three annual reports with recommendations to assist Governor Scott in developing a vision of job creation for individuals with disabilities, which could be carried out by multiple agencies and organizations, both internally and outside of state government. Together, these two efforts laid a foundation for Florida to develop a sustainable systems change approach within the state's employment programs serving persons with disabilities.

2.2. Taking action in Florida

The efforts of the FDDC and the Governor's Commission on Jobs for Floridians with Disabilities coalesced around the Florida Employment First Executive Order. The executive order was signed by Governor Scott on October 8, 2013, and on January 21, 2016 Governor Scott codified his Executive Order when he signed the Individuals with Disabilities Act. Both formally defined employment as:

Integrated employment, including supported employment, customized employment, and

self-employment, where an individual is paid by an employer at minimum wage or greater or receives earnings through one's self-employment business, fully integrated in the community workforce, with a goal of maximum self-sufficiency.

Using the elements of the High-Performing States Model to structure the expected systems change actions, the Executive Order and Act requires specified state agencies and organizations to develop and implement a state-level interagency coalition and an Employment First interagency cooperative agreement to ensure the long-term commitment to employment across key state agencies and organizations that support individuals with disabilities.

In response to the 2013 executive order and continuing currently, two primary groups were developed to facilitate interagency collaboration and leadership across Florida: 1) *The Employment Partnership Coalition*, with a membership of 60+ individuals representing agencies and organizations that provide services to individuals with disabilities, worked to coordinate and implement Florida's Employment First activities. 2) *The Employment First Collaborative Team* is a smaller working group of the Employment Partnership Coalition, and meets on a monthly basis. Members represent FDDC, Governor's Commission on Jobs for Floridians with Disabilities, Florida Department of Education, Division of Blind Services, Bureau of Exceptional Education and Student Services, CareerSource Florida, Florida Department of Economic Opportunity (DEO); Agency for Persons with Disabilities (APD); Florida Department of Children and Families, Substance Abuse and Mental Health; Division of Vocational Rehabilitation (DVR); and the Florida Association of Rehabilitation Facilities. Over the past two years, the Florida Department of Management Services has become an active member of the Employment First Collaborative Team. The collaborative team works together to write and implement interagency agreements, develop and monitor strategic implementation action plans, establish baseline data and targets for improvement, and fully implement the executive order and legislation.

2.3. Interagency collaborative agreement

The Employment First Executive Order mandated the development of an interagency cooperative agreement between key Florida agencies and

organizations. The Employment First Interagency Collaborative Agreement was required to identify objectives that align with the elements of the High-Performing States Model (Hall et al., 2007). The Employment First Collaborative Team is composed of program staff members assigned by the Partner agencies or organizations that are parties to the agreement. The Employment First Collaborative Team worked to develop a Collaborative Strategic Action Implementation Plan. The plan uses the seven elements of high-performing states (Hall et al., 2007) to guide each agency's activities, and is intended to be updated annually. The term of the Interagency Cooperative Agreement began on July 1, 2014 and will end on June 30, 2019. Plans are underway to renew the agreement in 2019. The agreement requires formal renewal to remain in effect beyond June 30, 2019. The agreement required the development of specific annual action plans. The expectations of the plans are summarized in Table 1.

3. Resources and actions to support implementation

3.1. Leadership

Leadership for Employment First Florida occurs at multiple levels. The 2013 Executive Order and 2016 Employment First Act demonstrate leadership at both the legislative and executive levels of state government. This explicit leadership follows through to expectations to the members of the Employment Partnership Coalition and Employment First Collaborative Team. One of the first actions that these two groups undertook was the development of the Employment First Messaging Video. The video features the director or agency head of each signatory party to the interagency cooperative agreement discussing why their agency or organization is focused on employment as the first option for Floridians with disabilities. Additionally, the Employment First Collaborative Team worked to develop an interagency communications plan to ensure that Employment First Florida is consistently part of any external communications that the agency develops. These efforts included working together to develop several articles, including an article for the magazine *Florida Trend*, to highlight the state's commitment in promoting employment opportunities for individuals with disabilities. Lastly, the collaborative team worked with the ICI to develop a logo and website to

publicize Employment First Florida. The website serves as the long-term repository for all resources and reports that developed through Employment First Florida.

3.2. Interagency collaboration and partnership

On May 7, 2014, nine state agency and organization Partners signed the five-year Employment First Initiative Interagency Cooperative Agreement. The five-year agreement, which took effect July 1, 2014, states that these Partners are "fully committed to working together to improve the number and percentage of growth in competitive employment for individuals with disabilities." The general purpose of the agreement is to provide a framework for a long-term commitment to improving employment outcomes for Floridians with disabilities. The agreement outlines specific roles and responsibilities of the Partners in order to accomplish the desired outcomes. The Partners developed an annual Strategic Action Implementation Plan to prioritize collaborative activities toward accomplishing the objectives within the cooperative agreement.

3.3. Strategic goals and operating policies

One of the first actions the Partners undertook in 2013 and 2014 was to complete an environmental scan of their agencies' or organizations' policies and practices to identify those that facilitate and impede integrated employment. Shortly thereafter in 2014, the federal Workforce Innovation and Opportunity Act (WIOA) was passed. The new law helped to strengthen the existing efforts related to collaboration within the workforce development, educational, and human services systems to better meet the needs of job seekers, including those with disabilities, and employers served by these systems. In Fiscal Year 2015–2016, CareerSource Florida, Inc. facilitated an interagency task force charged with identifying strategies to assist the state in its implementation of WIOA. The task force used the framework developed by the Employment First Partners as a model for updating policies and practices related to collaboration among the state programs impacted by WIOA, many of which are administered by the Employment First Partners (such as the DVR).

Florida is also responding to the Center for Medicare and Medicaid Services (CMS) Home and Community-Based Settings (HCBS) 2011 guidance and 2015 1915(c) Technical Guide that makes

Table 1
Florida Interagency Plan Summary by High-Performing States Element

High-Performing States Element	Expectations for Annual Florida Interagency Plan
A. Leadership: Local and state-level administrators are clearly identifiable as “champions” for employment.	A. Commitment to maximize resources to improve employment outcomes for persons with disabilities seeking publicly funded services.
B. Strategic goals and operating policy: State mission, goals, and operating policies emphasize employment as a preferred outcome.	B. Develop strategic goals and reasonable benchmarks to implement this agreement, including identification of baseline employment outcome data for persons with disabilities served by their agency or organization, if they are a direct service agency or an organization with contracts for direct services, and set targets for improvement.
Performance measurement and data management: Comprehensive data systems are used as a strategic planning tool to further the state’s goals of increasing employment.	Report annually to the governor’s office on accountability measures for implementation of the action plan and results from targets for improving the employment outcomes for persons with disabilities.
C. Funding: Funding mechanisms and contracts with providers emphasize employment as the preferred outcome.	C. Revise financing and contracting methods to ensure they prioritize employment among the array of services provided by each agency or organization.
D. Capacity building: There is a sustained and significant investment in employment-related training and technical assistance.	D. Develop and provide training opportunities that can be better used by agency employees and contracted providers to ensure effectiveness of employment services.
E. Interagency collaboration and partnership: Through interagency agreements and relationships, provider collaboration, and outreach to stakeholders, employment is shared as a common goal.	E. Collaborate with partners during the development of service plans, including the Individual Plan for Employment, when individuals are served by multiple agencies to achieve their employment goals.
F. Interagency collaboration and partnership: Through interagency agreements and relationships, provider collaboration, and outreach to stakeholders, employment is shared as a common goal.	F. Develop a long-term communications plan to 1) increase employment opportunities for persons with disabilities by motivating employers to hire, 2) promote a consistent message of awareness among employers about the value persons with disabilities bring to the workforce, and 3) inform employers about the resources that are available to assist with their hiring needs, including the single-point of contact.
Leadership: Local and state-level administrators are clearly identifiable as “champions” for employment.	
Services and service innovation: The state IDD agency works to create opportunities for providers, individuals, and families to make optimum use of the resources available for employment; includes disseminating information related to creative strategies to support individuals in employment.	Promoting service innovation.

clear that individual competitive employment is the preferred outcome of employment-related supports, including prevocational and group supported employment services. The guidance from CMS in conjunction with Section 511 of WIOA requiring DVR to provide education on available supported employment services to individuals earning sub-minimum wages has led cohesive policy and practice changes between APD and DVR that support increased access to integrated employment for individuals with the most significant disabilities.

3.4. Performance measurement and data management

The Partners determined that it would be useful in carrying out their mission to identify each agency

or organization’s baseline employment outcome data. Data collected was for Floridians with disabilities served by the Partner agency or organization in any form of direct employment services, and targets were set for improvement. Agencies and organizations use varied timelines for reporting, which impact the outcome data. Many also report lag data. Therefore, due to the varying data sets and the nature of these long-term systems-change efforts, immediate employment outcome impact may not be realized.

3.5. Funding

Neither the Employment First Executive Order nor Act provided additional funds to facilitate implementation. Instead, the expectation was that each of the Partners would realign their priorities to

ensure adequate funds for integrated employment services and supports. From 2016–2017 the FDDC funded the development of the report “A Systematic Approach to Revising Florida’s Integrated Employment Funding System.” The report was completed by the ICI and resulted in recommendations to improve APD’s funding process and payment rates. Additionally the report offered recommendations about how APD could braid funds with other Partner agencies to support integrated employment as the first option.

DVR has historically made use of third-party cooperative arrangements with local school districts to braid funding to deliver community work experiences and job retention supports to students with the most significant needs. The Nassau County School District had many years of success using these types of agreements, but were often limited by the lack of long-term employment service providers in their community. In 2016, to further the mission of Employment First, Nassau County became the first school district in the state eligible for VR Vendor designation. This is a model that VR is working to expand across the state of Florida.

Funding for Project SEARCH represents another specific strategy to advance employment outcomes for individuals with the most significant disabilities. State partners including DVR and the FDDC have worked to ensure that every area of the state has the resources and capacity to begin and sustain at least one Project SEARCH site. The FDDC has provided start-up funds to scale up Project SEARCH sites across the state, and DVR has made the supports provided within Project SEARCH a reimbursable service.

3.6. *Capacity building*

The Partners served in an advisory capacity in the development of an Employment First Collaborative Training Toolkit. Funded by the FDDC and developed and implemented by the Center for Social Capital, the training toolkit is designed for cross-agency use to evaluate and address training needs among employment service professionals. The toolkit uses evidence-based resources for training providers that implement job development and job site training, and that provide other related supports to employers and to individuals with disabilities. In 2017, the Partners hosted “train-the-trainer” sessions throughout the state to incorporate the toolkit within their ongoing training activities with staff.

To support the capacity of the labor market to hire people with disabilities, two additional laws were passed in Florida. The Florida Unique Abilities Partner Program was created to recognize businesses that demonstrate a commitment, through employment and other support, to helping individuals with disabilities achieve independence within their communities. The Partners are assisting the DEO in implementing the program. Additionally, a law was passed to modify the state’s equal employment policy to enhance executive agency employment opportunities for individuals who have a disability. The Partners assisted the Department of Management Services to develop and implement programs that incorporate internships, mentoring, on-the-job training, unpaid work experiences, and situational assessments; establish affirmative action goals; develop a plan for people with disabilities; and annually report on increasing employment among women, minorities, and individuals who have a disability.

Efforts to build the capacity of individuals with disabilities have also been a focus of Florida’s work. Self-advocates with IDD contributed to the legislative advocacy efforts that led to attainment of Florida’s formal legislation, and continue to take a lead role in supporting and creating legislative priorities for critical issues impacting individuals with IDD who choose employment. Through work with the ICI, self-advocates have assisted with development of easy-to-read versions of formal Employment First documents, the Employment First Florida website, and Florida’s *Explore Work* curriculum.

3.7. *Services and service innovation*

Florida has implemented a series of innovative services and strategies to further Employment First. These include Abilities Work Web Portal and Help Desk, Unique Abilities Partner Program, Local Level Employment First Collaborative Teams, Financial Literacy for Individuals with Developmental Disabilities, and Workers Compensation Law.

3.7.1. *Florida Abilities Work Web Portal and Help Desk*

The Partners assisted in the development and implementation of the Florida “Abilities Work” Web Portal and Help Desk to better connect employers with qualified candidates with disabilities in their communities. The DEO, with the support of the DVR, established a single point of contact for employers to

1) assist them to access people with disabilities who are ready and able to work, for recruitment and hiring purposes (web portal), and 2) provide information on available services that can support persons with disabilities in the workforce (help desk). DEO has the lead on the web portal and DVR on the help desk.

3.7.2. *Florida Unique Abilities Partner program*

The Florida Unique Abilities Partner program is administered by the Florida Department of Economic Opportunity. The intent of the program is to recognize businesses and organizations that demonstrate a commitment to helping Floridians who have disabilities through employment or by providing support to organizations that assist them. Employers who are accepted as Florida Unique Abilities partners are listed on the Florida Unique Abilities Partner website, receive a special designation in Employ Florida if the business is currently listed, have their name provided to Visit Florida for consideration in the development of marketing campaigns, receive a window cling with the Florida Unique Abilities logo they can display in their windows, and a logo template to use on corporate materials including letterhead and marketing.

3.7.3. *Local Level Employment First Collaborative Teams*

The Employment First Partners are providing support to several Local Level Employment First Collaborative Teams in Nassau and Osceola counties and in the Treasure Coast Region (Indian River, Martin, Okeechobee, and St. Lucie counties). With technical assistance from the ICI, these local sites are bringing Employment First to scale by supporting collaboration among local agency representatives, local school districts and education networks, universities, parent and self-advocacy groups, providers of services to individuals with disabilities, Florida colleges, and mental health organizations.

3.7.4. *Financial Literacy for Individuals with Developmental Disabilities*

The Employment First Partners also served as advisory members to the Florida Department of Financial Services and provided input into the development of the Financial Literacy resources, particularly the My Money curriculum. My Money uses an online platform to support individuals with disabilities to learn the basics of managing their own finances and to make informed choices about employment and income management.

3.7.5. *Workers' Compensation Law*

An innovative strategy to support expanded opportunities for career exploration and on-the-job training has been to expand state workers' compensation to individuals with disabilities who work in state-sponsored work experience activities. Beginning July 1, 2018, these individuals are considered state employees for workers' compensation purposes.

4. Conclusion

Florida is in a prime position to demonstrate how an Employment First vision can become a reality as businesses and families around the country observe its example of employment and economic growth. For the past few years, great strides have been made to ensure employment is Florida's top priority in helping individuals with disabilities achieve economic prosperity alongside their peers within the community. As the state moves forward with implementing the Employment First Act, visible, continued, and increased support from Florida's governor and partner agency and organization leaders will be necessary to ensure the effort's goals are attained.

Conflict of interest

None to report.

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